

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

December 9, 2019

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Absent: Ken Esquibel. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Mr. Laybourn expressed appreciation to Jason Sanchez, Community Recreation & Events Deputy Director and his crew for cleaning snow in the downtown area for the Christmas Parade. Justin Gorman, Greater Cheyenne Chamber of Commerce, thanked Mr. Sanchez and his staff, Mayor Orr and other city staff for their assistance before and during the parade. Mr. Sanchez advised he has the privilege of working with a great group of people, noting everyone came together with positive attitudes to assist. Mr. Laybourn complemented the Depot Plaza and Municipal Building seasonal decorations.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Luna moved to approve Consent Agenda items, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on November 25, 2019. Motion (per Consent Agenda) carried.

[CA] Minutes from Special Meetings of the Governing Body on October 22, 2019 and November 25, 2019. Motion (per Consent Agenda) carried.

ORDINANCE – 3rd READING – Pursuant to Section 2.2.2 Planned Development – Regulating Plan or Development Master Plan, Section 5.1.3 Official Zoning Map, and Section 5.6.2 PUD – Planned Unit Development District of the Unified Development Code, amending Ordinance No. 3841 by modifying certain standards of the adopted district, Planned Unit Development (PUD), for Lots 1-3, Block 1, Lots 1-4, Block 2, (less that portion platted to Pointe Plaza, 2nd Filing), and Lots 1-2, Block 3, Pointe Plaza; a portion of Lot 2, Block 1, Pointe Plaza, 2nd Filing; Lots 4-23, Block 1, Pointe Plaza, 3rd Filing; all of Point Plaza 4th Filing; and all of Pointe Plaza, 5th Filing, Cheyenne, Laramie County, Wyoming (located northwest of the intersection of Gardenia Drive and Powderhouse Road) Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by Mr. Roybal. Dr. Rinne moved to amend by substitute dated 12/2/2019, seconded by Mr. Shanor. Dr. Rinne explained testimony was heard

at the Public Services Committee from Joe Patterson, Guardian Companies, and the original intent was to change the PUD just for Delta Dental and that the proposed substitute will change it back to its original intent. Joe Patterson, Guardian Companies, explained the original amendment was specific for their lot and block and he supports the amendment. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present. (#4291)

[CA] RESOLUTION – Authorizing the City Treasurer to discharge uncollectible debts in the amount of \$34,137.07 pursuant to Wyoming Statute §16-4-502. Motion (per Consent Agenda) carried. (#6025)

[CA] RESOLUTION – Certifying the Interim Cheyenne Area Master Transportation Plan. Motion (per Consent Agenda) carried. (#6026)

[CA] RESOLUTION – Providing for the review and approval of a Federal Mineral Royalty Capital Construction Account Grant application to the Wyoming State Loan and Investment Board on behalf of the Governing Body for the South Cheyenne Water and Sewer District for two Sewer Collector Rehabilitation Projects – Southern Interceptor (Priority One) and Terry Road Sewer Collector (Priority Two) – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Supporting the City of Cheyenne’s application for a Land and Water Conservation Fund Grant for replacement of the playground in South Lions Park – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Approving Sanitary Sewer Service, by Outside User Sanitary Sewer Services Agreement, for Laramie County Fire District No. 2, for Tract 28, excepting the East 40 feet of said tract, Dell Range Addition, 2nd Filing, Section 22, Township 14 North, Range 66 West, of the 6th P.M., Laramie County, Wyoming – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Pursuant to W.S. §15-1-404 (b) certifying compliance with W.S. §15-1-402, for a City-initiated annexation for portion of land generally located between Old Happy Jack Road and Happy Jack Road, and west of I-80 – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Authorizing a street name change from “Cribbon Avenue” to “South Cribbon Avenue” for the portion of the street located between West Jefferson Road and Pinto Lane, City of Cheyenne, Laramie County, Wyoming – referred to Public Services Committee. (Sponsor – Dr. Rinne)

Land Purchase and Sale Agreement between the City of Cheyenne and Victory Real Estate Management, LLC, for the purchase of real property described as a portion of Lot 1, Block 1, P.A.S. Subdivision, City of Cheyenne, Laramie County, Wyoming, for the appraised value of \$329,630.00, for economic development purposes (General Fund) (Postponed from November 25, 2019). Reporting for Finance Committee, Mr. Luna moved to approve in an amount not to exceed

\$329,630.00, seconded by Mr. White. Mr. Laybourn moved to postpone to December 19, 2019, seconded by Mr. Roybal. Michael O'Donnell, City Attorney, explained the fundamental purpose for the proposed purchase is to gain access to the property including the Ice & Events Center property which is critical. He advised lack of access is holding up purchase of the front tract of Hitching Post property. Mr. O'Donnell explained back buildings #3, 4 and 5 are included in the proposed purchase including the access at the request of the property seller. He further explained the City doesn't have to take ownership and commit to abatement and rehabilitation as they could sell the additional property and abatement cost would be the responsibility of a future purchaser. Mr. O'Donnell advised the reason for the motion to postpone is to allow for more time to acquire abatement and rehabilitation cost estimates which have been difficult to obtain. Upon inquiry, Mr. O'Donnell explained the Attorney's office, along with additional City staff, are working diligently on obtaining estimates as timing is vital for adjacent projects. Support was expressed for a future staff presentation outlining the City's cost estimates and all potential options. Brendan Ames, Chief Economic Development Officer, upon inquiry, explained an adjacent private property project is underway and the access point to the property (proposed new hotel) is critical. He advised the interested developer will need appropriate access and without it, the project could be halted. Comments were made in support of the project, importance of obtaining expenses associated with the project and how capital construction project expenditures can affect available funding for salaries, health insurance, etc. Discussion followed related to the item being postponed, possibly reconsidered or being brought back as a new agenda item if it fails. Kris Jones, City Clerk, and Mr. O'Donnell, upon inquiry, provided information on reconsideration and reintroduction of the item if it fails, explaining it can be reconsidered at the next council meeting or reintroduced at a later time. They provided additional procedural information relating to reconsideration and agenda item introduction processes. Concern was expressed relating to the message that may be interpreted by potential buyers by letting the item fail. Motion to postpone failed. Voting "yes" – Mayor Orr, Mr. Laybourn, Mr. Roybal and Mr. White. Voting "no" – Mr. Case, Mr. Cook, Mr. Luna, Dr. Rinne and Mr. Shanor. Discussion topics included: Time and effort involving the project (one employee alone has worked in excess of 200 staff hours), Attorney's office acquiring requested project expenses expediently, importance of project and time frame relating to potential investors, appearance and perception of continued postponements versus reintroduction, support and opposition were voiced regarding postponement, potential for additional development on the west side of town and opinion that the roadway should have been acquired when the Ice and Events Center was acquired. Ms. Jones, upon inquiry, explained only someone voting on the prevailing side would be eligible to make a motion to reconsider the item at the next council meeting. Main motion failed. Voting "yes" – Mayor Orr, Mr. Laybourn and Mr. White. Voting "no" – Mr. Case, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Roybal and Mr. Shanor.

[CA] Professional Services Agreement between the City of Cheyenne and Western Research and Development, Ltd, for 2020 Signal Upgrade Design Services (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Saddle Ridge, LLC, to outline the responsibilities for the donation of land and for the management of a multi-purpose non-motorized pedestrian and bicycle pathway, park and landscape amenities in a portion of Saddle Ridge, 7th and 9th Filings (Community Facilities Fees) – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and WJE, LLC, to outline the responsibilities for the donation of land and for the management of a multi-purpose non-motorized pedestrian and bicycle pathway, park and landscape amenities in a portion of Saddle Ridge, 8th, 9th, 10th, 11th, 12th and 13th Filings (Community Facilities Fees) – referred to Finance Committee.

[CA] Cooperative Agreement between the City of Cheyenne and Wyoming Department of Transportation for the 2020 Epoxy Striping Project (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #6986 between the City of Cheyenne and TC Solutions, LLC, for Owner's Representative Services for the Splash Pad Project – referred to Finance Committee.

[CA] Consideration of Bid #E-4-20 for furnishing one (1) John Deere 1575 Terrain Cut with Comfort Cab Commercial Front Mower (less mower deck), Rotary Broom, Snow Blower, and Blade, for the City of Cheyenne, Facilities Division (2015-2018 1% Sales Sax) – referred to Finance Committee.

Voucher Report. There were no comments or discussion related to the voucher report.

Announcement was made that due to the Christmas holiday schedule, the regularly scheduled City Council meeting on Monday, December 23, 2019 will instead be held on Thursday, December 19, 2019 at 6:00 p.m. in the Municipal Building, City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming.

Under other business:

Bill Gonzales, Street and Alley Department, asked for support for fair compensation for his crew when they have to report to work as essential employees when the City has a weather-related closure. Upon inquiry, he advised the solution he would like is that his staff be compensated as if they are working on a holiday as they are paid their regular rate of pay in these scenarios.

Kris Jones, City Clerk, advised the following Public Hearing announcement was inadvertently left off agenda and read into record: Announcement of a Public Hearing to be held December 19, 2019 at 6:00pm in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for the North ½ of Lot 4, Williams Subdivision, Laramie County, Wyoming (located northeast of the intersection of Marshall Road and Storey Boulevard).

There being no further business to come before the governing body, the meeting was officially adjourned at 6:41 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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